

Speaking brief — Black Mountain / Parker County

For answering questions out loud. Prepared September 3, 2026.

Each entry: what you'd be asked, what to say, the number and where it comes from, and the limit — the thing you must not claim. The limits are the point. Every number here has one, and knowing it is what lets you answer a hostile question without retreating.

If you remember nothing else

Three things are always true and always safe to say:

1. **Nobody has filed a number.** No capacity is on record for the Parker site, no permit application is on file with the county, no ERCOT queue position has been announced. That is a fact about the record, not a guess.
2. **Parker County has refused abatements** — Resolution 26-25. The county already did the one thing fully within its power.
3. **The water question is live and the abatement question is closed.** If you have thirty seconds, that sentence is the briefing.

And one habit: when you don't know, say "I don't know, and here's what would settle it." That sentence has carried this project further than any figure in it.

1. "You published \$364 million. Now you don't. Which is it?"

Say this. The \$364 million was a scenario multiplied by an assumption — a gigawatt campus extrapolated from acreage, times an 80% tax abatement. Neither was ever filed with anyone. The county then refused abatements outright, so the assumption stopped describing reality. We didn't delete the number; it's still in the grid, in the cell where "1 GW, acreage-implied" meets "80% Chapter 312," and the June briefing is still online, unchanged, so anyone can read what we said.

The source. Resolution 26-25; county judge on the record, June 30, 2026: *"there will be zero tax abatements for data centers in Parker County."*

The limit. Don't oversell the correction as proof of rigor — we published the number for three months and residents were right to flag it. Say that plainly if asked. It costs nothing and it is the reason to believe the rest.

If pressed. "What changed isn't the arithmetic — the model is the same. What changed is that one input became a known fact instead of an assumption."

2. "How big is this thing?"

Say this. Nobody has said, publicly, on paper. The TCEQ registration authorizes five gas turbines. The 75-megawatt figure everyone repeats — including us, in June — comes from testimony in open court on May 26, not from the permit.

The source. TCEQ Air New Source Registration 179422 (RN112172408). The Central Registry entry shows status, holder and address — **no capacity**. The Central File Room returns no documents.

The limit. Do not say the permit authorizes 75 MW. It's the single most likely place to be caught. And don't treat 75 MW as a ceiling either: the same operator's Bowie County plant, filed under the same standard permit, discloses roughly **446 MW**, and three of its Tarrant registrations are named for Siemens SGT-800 machines rated 45–62 MW each. Five of those would be 250 MW or more.

If pressed. "The number exists in a file at TCEQ. We've asked for it. Until it's public, we label it as testimony, because that's what it is."

3. "How many acres?"

Say this. About 2,081 acres assembled. The 18 parcels that got corrected notices when the appraisal district stripped the agricultural exemption on May 15 total 2,075.28.

The source. The May 2026 corrected notices for the 18; Parker CAD's certified roll for the 19th — parcel R000127494, 6.53 acres, bought from the same seller, sequential in the same block, geocoded identically to its neighbour, and never issued a notice.

The limit. We have no deed for that 19th parcel. Same seller, adjacent, sequential is strong but circumstantial. If someone runs title and it isn't part of the transaction, the number is 2,075.28. Say so before they do.

Also worth knowing. Two CAD documents disagree by 0.39 acres on one parcel — the May 2026 notice reads 155.763 where the 2025 roll reads 155.373. Transposed digits. We use the newer document.

4. "How much water will it use?"

Say this. The land can legally yield between about 52 and 520 million gallons a year — roughly 0.14 to 1.4 million gallons a day — and the exact figure depends on how thick the Trinity is under that tract. What matters more is that closed-loop cooling doesn't solve it. It moves the water to wherever the electricity is made.

The numbers. At 75 MW of computing load: an evaporative hall consumes about **197 million gallons a year** on site. A closed-loop hall consumes about **8 million** on site — but **205 million** once you count the water consumed generating its power on a combined cycle or grid supply. Essentially the same total, relocated.

The source. UTGCD Rule 5.2 (500 gallons per contiguous controlled acre × aquifer thickness, floor 25,000, cap 250,000). Generation water from TWDB's *Power Generation Water Use in Texas*: 0.05 gal/kWh for a gas turbine with wet NOx control, negligible with dry control, 0.23 for combined cycle with a cooling tower. Cross-checked against NREL/TP-6A20-50900.

The limit. We don't have the aquifer thickness at the tract yet, so the ceiling is a range, not a number. **And do not repeat the "five million gallons a day" figure** heard in public comment — it is unsourced and we don't use it.

The local sting, if you want one line that lands. "They propose to make their own power on that tract. If they do, the water behind the power comes out of the same aquifer — which means whether those turbines use wet or dry NOx control is a groundwater decision buried inside an air permit that was issued in two and a half weeks with no public process."

5. "What will it cost the county?"

Say this. Under the county's own resolution there's no abatement, so the honest question isn't what we lose — it's what we collect and whether it covers what the project costs us in services.

The numbers, unabated. Phase 1 (~\$750M of improvements): about **\$3.8 million a year** to the county, hospital district, junior college, ESD-1 and lateral road — \$38 million over ten years. Plus about **\$6.6 million a year to Weatherford ISD**, which no county abatement could touch anyway. A Fort Worth-class campus at \$10 billion would be roughly \$506 million and \$879 million over ten years respectively.

The source. 2025 adopted rates; improvements taxed at 85% of value; model at `profile_2026_09/RC0_05g_scenarios.R`.

The limit — important. We have not quantified the service costs. Emergency response for an industrial site, road wear, water-system load are all real, and we have not put a dollar figure on any of them. Do not assert that the project costs more than it pays. We don't know that yet.

If someone says "so it's good for us." "On the revenue side, probably yes, and the caps don't even claw it back — new construction is excluded from the 3.5% calculation in its first year. That's why the question is net, and the net is what nobody has computed."

6. "Why can't the county just stop it?"

Say this. Texas counties have no zoning. The counties that tried land-use prohibitions got sued and reversed.

The record. Hill County passed a one-year moratorium in May 2026 and rescinded it within weeks after a developer sued for more than \$100 million. Tom Green abandoned its plans after watching. Hood and Hays considered moratoriums in February and never adopted them; Hood has denied

plats instead and is in litigation. What holds up is cities using zoning — El Paso's 300-foot residential separation, Forney's 1,000-foot buffer, Lewisville's special-use permits.

The mechanism, if someone wants the why. HB 2127 (2023) created Civil Practice & Remedies Code Chapter 102A: any person — or a trade association on a member's behalf — who suffers an injury "actual or threatened" from a county ordinance can sue, governmental immunity is waived, and the claimant recovers attorney's fees on winning while the county recovers only if the suit was frivolous.

The limit. SB 2858, which would have added attorney-general enforcement and let the comptroller withhold a county's sales-tax funds, **died in House Calendars**. Don't describe that as current law.

7. "What has the court actually done?"

Say this. Two things, both real. Resolution 26-25 refuses tax abatements for data centers. And the June 9 resolution opposes open-loop evaporative cooling and high-volume potable water use.

The limit — say this part too. The resolution binds no future court, and it does not bind the hospital district, the junior college, ESD-1 or the lateral road fund. Each of those grants its own Chapter 312 agreement. That's why asking them to match it is on our list.

8. "What about the campaign contributions?"

Say this. They're filed, and we cite the report numbers. Just over a million dollars to the Governor's committee across three gifts, \$20,000 to Parker County's state senator, and \$30,000 to the House State Affairs chair who ran the interim hearing on data centers.

The numbers. **\$1,036,750** to Texans for Greg Abbott — \$500,000 on 11/14/2025 (TEC #101029815), \$500,000 on 3/6/2026 (#101055764), \$36,750 on 10/23/2024 (#100987892).

\$20,000 to Sen. Phil King (#100970637, #101026985). **\$30,000** to Rep. Ken King (#101028141, #101035143, #101058003).

The limit — do not skip this. Nothing in the record shows a contribution bought a decision, and we have no evidence of one. Say it before you're asked. And volunteer the fact that cuts against the insinuation: **the same Governor froze data-center interconnections statewide on August 3.**

One technical note, in case someone checks. The CEO files under two name forms — "Rhett Bennett" and "John Bennett." A 2018 filing under "John Rhett Miles Bennett" ties them to one person. That's why the totals combine them, and the site discloses it so the arithmetic can be checked.

9. "What's the state doing about any of this?"

Say this. On August 3 the Governor ordered PUC and ERCOT to audit every data center in the interconnection queue before any more move forward. ERCOT is working to finish by December 10.

The scale. Roughly 250–300 projects under audit, against about 474 gigawatts of interconnection requests — more than five times ERCOT's record peak demand — of which about 90% is data centers. Each project must file its incentives, power draw, water use, community mitigation and ownership.

On the tax breaks. Tax Code §151.359 and §151.3595 exempt qualifying data centers from sales tax on equipment, cooling and **the electricity itself**. The Governor cannot repeal them — they're statutes, administered by the Comptroller, who is separately elected. He's named repeal a 2027 legislative priority. What can claw money back is an audit: **138 facilities certified, 20 audited, 6 of those 20 out of compliance.**

The limit. The August 3 directive is a pause on advancement through interconnection, not a moratorium. Don't call it a ban.

10. "What's a 391 commission and will it help?"

Say this. It's a planning commission two or more counties can form by resolution. It can study, recommend, review state and federal grant applications, and require state agencies to coordinate with it. It cannot tax, cannot zone, and adds no authority the counties don't already have.

The honest verdict — and it was said in open court on July 13: a 391 is *"perception of doing something without actually accomplishing the main goal."* What it does is add hurdles and delay, and create a table the state has to sit at.

Where it stands. Two routes: a new Parker–Hood sub-regional commission, or working inside the North Central Texas COG, which is itself a 391. As of mid-July the county had no local partner secured. Our record stops there.

11. "Are you against data centers?"

Say this. No — against a process that put a 2,000-acre industrial assembly and a power plant next to people who had no way to know it was coming. If the water, the power and the money are disclosed and the community has a seat, that's a different conversation.

Don't get drawn into defending a position the briefing doesn't take. It's a document about process and evidence.

12. Things we no longer claim — do not repeat these

The June briefing is still online at </archive/2026-06/> , and people have read it. If one of these comes back at you, the answer is "we withdrew that, and here's why."

Retired claim	Why
"\$364 million" as a forecast	A scenario × an abatement the county has since refused. Survives only as one labelled cell in the grid.
"\$30 million, Phase 1"	Same.
Per-family or per-household dollar figures	Dividing a scenario by 46,404 households produced something that read like a bill.
"75 MW, TCEQ-permitted"	It's testimony, not a permit term.
"1 gigawatt buildout"	Extrapolated from acreage. No filing supports it.
Fleet capacity "~5,800 MW" across 14 sites	From a spreadsheet that isn't archived and couldn't be re-sourced. Only 4 of 14 sites have any capacity annotation.
Siting-risk ranks ("Parker 237 of 254")	Two of four published ranks weren't reproducible; the index saturates for 15 counties; the causal claim was wrong. Section retired.
"The county can't tax its way back"	Assumed an abatement. New construction is excluded from the revenue caps in its first year.
"2,075 acres" as the assembly	That's the noticed subset. The assembly is about 2,081.
"Five million gallons a day"	Never ours — unsourced public comment.

13. The ask, compressed

If someone asks what you want the court to do, there are seven, and the first four are letters or filings the county attorney would prepare:

1. Ask TCEQ for the registration file — and whether it was evaluated against the 25-tons-per-year NOx threshold that applies in the DFW **Severe** ozone nonattainment area, given testimony that the plant will run continuously.
2. Amend the water resolution from "no open-loop cooling" to a **total-system water** standard.
3. Put the county on the record with the groundwater district: notice of high-volume applications, contested-case intent, whole-system water disclosure.
4. File with PUC and ERCOT before the audit closes — publish results county by county, report water whole.
5. Settle the 391 route with a date certain.

6. Ask the hospital district, junior college, ESD-1 and lateral road fund to match Resolution 26-25; adopt a road-use and financial-assurance policy before construction traffic.
7. Adopt decommissioning terms — baseline survey before ground disturbance, removal to four feet, no salvage credit, security posted per phase, covenant running with the land.

Correspondence to any agency outside county government is the county attorney's to draft and send. We supply example language and citations. We don't supply final drafts.

14. Four things still unresolved

Say these freely. They're the honest edge of the work.

1. **The permitted capacity** — needs a records request to TCEQ.
 2. **Trinity thickness at the tract** — from the district's map or its new groundwater flow model. Would turn the 52–520 Mgal/yr band into one number.
 3. **UTGCD's adopted rules text** — the district hadn't posted it as of September 1; we quote the proposed amendments read together with the signed agenda.
 4. **A deed for the 19th parcel** — would settle 2,081 versus 2,075.28.
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Every figure in this brief traces to the published briefing at parker-data-pro-populo.github.io/data-center-surface-datarun, and through it to a public record. If one is wrong, that's worth knowing before it's said out loud.